

GALLANT IAS ACADEMY
PRELIMS CUM MAINS BATCH 2027
POLITY
MODULE 2.1
LEGISLATURE (ARTICLE 79 - 88)

Article 79: Constitution of Parliament

Article 79 establishes a **Parliament for the Union**, consisting of the **President** and two Houses - the **Council of States** (Rajya Sabha) and the **House of the People** (Lok Sabha). The Council of States represents the States and Union Territories of the Indian Union. India's parliamentary form was adopted from the British Parliamentary system, not the American Presidential system, and it rests on interdependence between the executive and the legislature, rather than a strict separation of powers.

Article 80: Composition of Rajya Sabha

The Rajya Sabha has a maximum strength of 250, of which 238 are elected from the States and UTs through indirect election, and 12 are nominated by the President.

How many seats for each State and UT?

Seat allocation is laid down in the **Fourth Schedule** of the Constitution, on the principle of a State's population - **Uttar Pradesh** has the highest allocation, with 31 seats. This differs from the US Senate, where each state gets 2 seats regardless of population.

How is the indirect election carried out in the States?

Rajya Sabha members from the States are elected by the elected members of the **State Legislative Assemblies**, using the system of **Proportional Representation by Single Transferable Vote (PR-STV)**.

How is the indirect election carried out in UTs?

The Constitution leaves the manner of election for UTs to Parliament, which enacted the **Representation of the People Act, 1951**. Members are elected by an electoral college specially constituted for the purpose, again by PR-STV. Only three UTs currently have representation in the Rajya Sabha: Delhi, Puducherry and Jammu & Kashmir.

What about nominated members?

The President nominates 12 members with practical experience or special knowledge of **Art, Literature, Science and Social Service** - this list of fields is illustrative, not exhaustive. The US has no equivalent provision.

First-Past-The-Post vs Proportional Representation

Benefits of PR	Issues with PR
Minorities or small groups secure representation	Unstable governments - Israel's Knesset and its instabilities leading to policy paralysis
Can boost election turnout	Bye-elections are not possible

Substantive democracy - more voices heard	Party becomes more important than voter
Coalition government - more collaborative policy-making, prevents despotism (Emergency as a case study)	Dilutes accountability; criminalisation of politics can develop
Prevents candidates from venturing into vote-bank politics	Radical ideologies may gain traction - e.g. AfD in Germany
	Some parties may be ever-present in cabinet - e.g. Free Democratic Party of Germany; government formation in "smoke-filled rooms" leading to horse-trading

Way Ahead

The **170th Law Commission Report (1999)** recommended a **Mixed Member Proportional Representation (MMPR)** system - PR + FPTP - on an experimental basis, along the lines of Germany's Bundestag, and suggested that roughly 25% of Lok Sabha seats could be filled through PR.

Mains Practice Question: "The First-Past-The-Post system ensures stability, while Proportional Representation ensures fairness." In the context of India's democratic setup, critically evaluate this statement. (250 words)

Proportional Representation with Single Transferable Vote - Quota Formula

Quota = [Total valid votes polled ÷ (Number of seats to be filled + 1)] + 1

Article 81: Composition of Lok Sabha

The Lok Sabha has a maximum strength of 550 - up to 530 members from the States and up to 20 from the Union Territories.

How many seats for each State and UT?

Seat allocation across States and UTs is determined through **delimitation** (see Article 82 below).

How is the election carried out in Union Territories?

The Constitution leaves the manner of election to Parliament, which enacted the **Union Territories (Direct Election to the House of the People) Act, 1965**, providing for direct election to Parliament from the UTs.

How is the direct election carried out in the States?

Lok Sabha members from the States are directly elected by the people from territorial constituencies, using the **First-Past-the-Post (FPTP)** system, based on universal adult franchise. Every adult who is 18 years of age (lowered from 21 by the **61st CAA, 1988**) and not disqualified under the Constitution or any law is eligible to vote.

Article 82: Delimitation and Its Nuances

What is the principle for States with a population greater than 6 million?

Delimitation follows two principles: **between** States, the ratio between seats and population is kept constant across all States; **within** a State, the ratio between the population of each constituency and the number of seats allotted is the same. Population figures from the preceding census are used.

Who conducts the exercise?

The Constitution requires this adjustment after every census, with Parliament empowered to decide the authority and manner of the exercise. Parliament has enacted Delimitation Commission Acts in 1952, 1962, 1972 and 2002 - four times so far.

Present position of delimitation

The **42nd CAA, 1976** froze the allocation of Lok Sabha seats (based on the 1971 Census) until the first census after 2000; the **84th CAA, 2001** extended this freeze until the first census after 2026. The **87th CAA, 2003** empowered the government to readjust territorial constituencies using 2001 Census figures, without altering the number of seats allocated to each State. The President specifies the date on which a delimitation order comes into force.

Delimitation Commission

The Delimitation Commission is a **statutory body** constituted under an Act of Parliament and appointed by the President. It comprises a **retired Supreme Court Judge** as Chairperson, along with the Chief Election Commissioner (or a nominated Election Commissioner) and the State Election Commissioner(s) concerned. Its orders cannot be questioned before any court - under Article 329(a) - and are merely laid before Parliament and the concerned State Assembly for discussion, not alteration.

Any reservations in the Lok Sabha?

Reservation for SCs/STs in the Lok Sabha is based on population figures and is extended every 10 years; the **104th CAA** most recently extended it by a further 10 years.

Process of Delimitation

Census → Parliament enacts a Delimitation Act → Delimitation Commission formed → Commission reviews data → Commission issues order → Order becomes final.

Need for Delimitation and Its Challenges

Need for Delimitation	Challenges
Population has risen sharply: each MP now represents far more people, diluting the principle of “one person, one vote, one value” - e.g. one MP in UP represents roughly 18 lakh people, while one MP in Kerala represents roughly 13 lakh	Crisis of two constitutional values: formal equality of voting vs. federalism/fraternity
Corrects over-representation of southern States and under-representation of northern States	Disincentivises population-control measures in States that would gain seats

Corrects under-representation of urban areas relative to rural areas, so urban issues are better reflected	Challenges in running a larger House for the presiding officer - Zero Hour, Question Hour become harder to manage
Realigns representation with current demographic reality	Local-body constituencies and MP/MLA constituencies are not synchronised; level playing field and gerrymandering concerns; unavailability of updated census data; reserved-seat allocation disputes; risk of erosion in the qualitative value of a minority vote

Way Ahead

Demographic and statistical experts could devise a mathematically equitable formula for apportionment, along the lines of the '**Cambridge Compromise**' used for the European Parliament, adapted to Indian needs. Best practices to draw on include **Canada's Independent Boundary Commission** and **New Zealand's Maori Representation Guarantee**.

Mains Practice Question: "Delimitation is necessary for democratic fairness but fraught with federal and political complexities." Critically analyse in the Indian context. (250 words)

Recent Development (2026): Constitution (131st Amendment) Bill

On 16 April 2026, three Bills were introduced in the Lok Sabha: the Constitution (131st Amendment) Bill, 2026; the Union Territories Laws (Amendment) Bill, 2026; and the Delimitation Bill, 2026. These propose to base the next delimitation on the 2011 Census rather than waiting for the first census after 2026, and to let Parliament (by ordinary law) decide the timing and the census to be used for delimitation, instead of this being fixed in the Constitution. They also propose raising the Lok Sabha's maximum strength from 550 to 850 (up to 815 from States, up to 35 from UTs), with corresponding implications for the rollout of the 106th CAA's women's reservation.

106th Constitutional Amendment Act, 2023 (Nari Shakti Vandan Adhiniyam)

The 106th CAA, 2023 (**Nari Shakti Vandan Adhiniyam**) reserves one-third of all seats for women in the Lok Sabha, State Legislative Assemblies, and the Legislative Assembly of the National Capital Territory of Delhi, including seats already reserved for SCs and STs. The reservation becomes effective only after the publication of the census conducted following the Act's commencement, and after the subsequent delimitation exercise; it applies for a 15-year period from implementation, extendable by Parliament. The rotation of seats reserved for women will be governed by a law made by Parliament, after each subsequent delimitation.

The Act inserts Articles **330A** (Lok Sabha), **332A** (State Assemblies) and **334A** (commencement, duration, rotation), and amends Article 239AA to extend the reservation to the Delhi Assembly. It does not apply to the Rajya Sabha or State Legislative Councils

Arguments For and Against

Arguments in favour	Challenges
Need: the 18th Lok Sabha has only around 74 women members (~14%), against a global average near 26% and Rwanda's ~61% (PRS Legislative Research)	Intersectionality within women is not separately targeted, except for the SC/ST sub-quota
Gender-gap reduction: India ranks poorly on political empowerment in global Gender Gap Reports	Implementation is tied to a pending delimitation exercise, which lags behind
A more diverse Parliament can be achieved; pressing women's issues can be raised	No reservation in the Rajya Sabha or State Legislative Councils
Precedent exists: Panchayati Raj reservation as a case study; can help develop women role models	Risk that women may be confined largely to the reserved seats ("proxy politics" concern)
Logical argument: if no election is valid without women's votes, fair representation should not exclude women	Some see the delayed, conditional commencement as diluting the spirit shown by women in the Constituent Assembly

Mains Practice Question: Discuss the key provisions and implications of the 106th Constitutional Amendment Act, 2023. What challenges does it pose? Suggest measures to address these challenges.

Article 83: Duration of the Houses

The **Rajya Sabha** is a continuing chamber, not subject to dissolution. A member's term, specified in the RPA, 1951, is 6 years, with one-third of members retiring every 2 years; retiring members may be re-elected or re-nominated any number of times.

The **Lok Sabha**, by contrast, has a term of 5 years from the date of its first meeting after a general election, after which it automatically dissolves. The President may dissolve it earlier at any time, and this cannot be challenged in court. During an **Emergency**, its term can be extended by one year at a time, for any number of times, but cannot be extended beyond 6 months after the Emergency ends.

Article 84: Qualification of Members

For the **Rajya Sabha**, a member must be a citizen of India, not less than 30 years of age, an elector for any parliamentary constituency, and must take an oath or affirmation of true faith and allegiance to the Constitution before a person authorised by the Election Commission. For the **Lok Sabha**, the requirements are identical except that the minimum age is 25 years. Both draw further qualifications from the **Representation of**

the People Act, 1951, as Parliament may prescribe.

Article 85: Session of Parliament, Prorogation and Dissolution

Under Article 85, the President summons each House of Parliament to meet at such time and place as he thinks fit, and no gap of more than six months may exist between the last sitting of one session and the first sitting of the next. The President also prorogues the Houses and dissolves the House of the People.

In practice there are usually three sessions each year - the **Budget, Monsoon and Winter Sessions** - following the hierarchy Session → Meetings → Sittings. The power of adjournment and adjournment sine die (Latin for “without a day”, i.e. without a fixed date for reassembly) vests with the **Speaker**, while prorogation and dissolution vest with the **President**. The period spanning prorogation and the reassembly of the next session is called **recess**.

Adjournment	Prorogation
Suspends the sitting	Suspends the session
Carried out by the presiding officer	Carried out by the President
Pending bills and notices remain unaffected	Pending bills remain, but notices lapse

Article 86: Right of the President to Address and Send Messages to the Houses

Under Article 86, the President may address either House of Parliament, or both Houses together, and may require the attendance of all members for this purpose. The President may also send messages to either House on any matter, including a Bill under consideration, and the House receiving such a message must consider it as soon as possible.

Article 87: Special Address by the President

Article 87 provides for a special address by the President - at the first session after a general election, and at the first session of each year. (Both houses of parliament assembled together)

Article 88: Rights of Ministers and the Attorney General

Under Article 88, Ministers and the Attorney General have the right to speak in and otherwise take part in the proceedings of either House, any joint sitting, or any committee of which they are a member - though they are **not entitled to vote**.

Previous Year Questions (PYQs)

1. For election to the Lok Sabha, a nomination paper can be filed by
 - (a) anyone residing in India.
 - (b) a resident of the constituency from which the election is to be contested.
 - (c) any citizen of India whose name appears in the electoral roll of a constituency.
 - (d) any citizen of India.

2. Consider the following statements:
 1. Union Territories are not represented in the Rajya Sabha.
 2. It is within the purview of the Chief Election Commissioner to adjudicate the election disputes.
 3. According to the Constitution of India, the Parliament consists of the Lok Sabha and the Rajya Sabha only.
 Which of the statements given above is/are correct?
 - (1) 1 only
 - (2) 2 and 3
 - (3) 1 and 3
 - (4) None

3. Democracy's superior virtue lies in the fact that it calls into activity
 - (a) the intelligence and character of ordinary men and women.
 - (b) the methods for strengthening executive leadership.
 - (c) a superior individual with dynamism and vision.
 - (d) a band of dedicated party workers.

4. How many Delimitation Commissions have been constituted by the Government of India till December 2023?
 - (a) One
 - (b) Two
 - (c) Three
 - (d) Four

5. Consider the following statements:
 1. The President of India can summon a session of the Parliament at such place as he/she thinks fit.
 2. The Constitution of India provides for three sessions of the Parliament in a year, but it is not mandatory to conduct all three sessions.
 3. There is no minimum number of days that the Parliament is required to meet in a year.
 Which of the statements given above is/are correct?
 - (a) 1 only
 - (b) 2 only
 - (c) 1 and 3 only
 - (d) 2 and 3 only

6. Consider the following statements regarding 'Nari Shakti Vandan Adhiniyam':
 1. Provisions will come into effect from the 18th Lok Sabha.
 2. This will be in force for 15 years after becoming an Act.
 3. There are provisions for the reservation of seats for Scheduled Castes Women within the quota reserved for the Scheduled Castes.
 Which of the statements given above are correct?
 - (a) 1, 2 and 3

- (b) 1 and 2 only
- (c) 2 and 3 only
- (d) 1 and 3 only

7. With reference to the Parliament of India, consider the following statements:

1. Prorogation of a House by the President of India does not require the advice of the Council of Ministers.
2. Prorogation of a House is generally done after the House is adjourned sine die, but there is no bar to the President of India proroguing a House which is in session.
3. Dissolution of the Lok Sabha is done by the President of India who, save in exceptional circumstances, does so on the advice of the Council of Ministers.

Which of the statements given above is/are correct?

- (a) 1 only
- (b) 1 and 2
- (c) 2 and 3
- (d) 3 only



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